

**CHAPTER cxviii.**

An Act to empower the Metropolitan Water Board to make waterworks and other works and to acquire lands and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS the Metropolitan Water Board (in this Act referred to as "the Board") are charged with the duty of supplying water within an area which comprises the whole of the county of London and parts of the counties of Middlesex Surrey Kent Essex and Hertford:

And whereas it is expedient that the Board should be empowered to construct the works and acquire the lands hereinafter referred to:

And whereas by the Southwark and Vauxhall Water Act 1898 certain works in the parish of Walton-upon-Thames in the county of Surrey hereinafter referred to were authorised and the Southwark and Vauxhall Water Company (in this Act referred to as "the Southwark Company") were empowered to acquire the lands required for the purposes thereof: 61 & 62 Vict.
c. cxv.

And whereas all the said lands have been acquired by the Southwark Company or by the Board but the period limited by the said Southwark and Vauxhall Water Act 1898 for the exercise of the powers thereby conferred of making the said works as revived and extended by the Metropolitan Water Board (Various Powers) Act 1907 expired on the twenty-eighth day of August one thousand nine hundred and ten: 7 Edw. 7.
c. clxxiv.

And whereas by virtue of the Metropolis Water Act 1902 the Board are the successors of (inter alia) the Southwark Company and it is expedient that the powers for completing the said works authorised by the said Southwark and Vauxhall Water Act 1898 should be revived and extended:

A.D. 1911.

And whereas it is expedient that the Board should be empowered to borrow money for the purposes of this Act and for the general purposes of their undertaking:

And whereas it is expedient that such further powers should be conferred upon the Board and that such further provisions should be made as are contained in this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Middlesex and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Metropolitan Water Board (New Works) Act 1911.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Works &c.

Part III.—Lands.

Part IV.—Revival of Powers.

Part V.—Financial Provisions.

Part VI.—Miscellaneous Provisions.

Incorporation of general Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and not inconsistent with this Act) are incorporated with this Act namely:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and the words “with two

“ sufficient sureties to be approved of by two justices in A.D. 1911.
 “ case the parties differ ” in section 85 of that Act);

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

The construction of the waterworks ;

The construction of works for the accommodation of lands adjoining the waterworks ;

The breaking up of streets for the purpose of laying pipes ;

The provision for guarding against fouling the water of the Undertakers ;

The recovery of damages not specially provided for and of penalties and the determination of any other matter referred to justices or to the sheriff ; and

Access to the special Act ;

The Waterworks Clauses Act 1863 except section 12 of that Act and except the words “ under any agreement for the supply of water for other than domestic purposes ” in section 13 of the said Act ; and

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof :

Provided that for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Board shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly.

4.—(1) The several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. Provided that in and for the purposes of this Act the expressions “ the undertakers ” or “ the company ” used in such incorporated Acts shall mean the Board. Provided also that for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 the works by this Act authorised shall be deemed to be the railway and the centre lines of the embankments shown on the deposited plans of such

Interpreta-
tion.

A.D. 1911. of the said works as consist of reservoirs and the centre lines of the remainder of the said works shown on the said plans shall respectively be deemed to be the centre of the railway.

(2) In this Act unless the subject or context otherwise require—

“The Board” means the Metropolitan Water Board;

“The conservators” means the conservators of the River Thames;

“The Act of 1902” means the Metropolis Water Act 1902;

“The water fund” means the water fund established by the Board under the Act of 1902.

PART II.

WORKS &c.

Power to
make water-
works.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works in the county of Middlesex hereinafter described (that is to say):—

A conduit or line or lines of pipes (being part of the conduit or line or lines of pipes described on the deposited plans as Conduit No. 12) wholly in the parish of Stanwell commencing in the Reservoir No. 5 by this Act authorised and hereinafter described at or near the north-western corner thereof and terminating in the said reservoir by a junction with the Conduit No. 13 by this Act authorised and hereinafter described;

A storage reservoir (Reservoir No. 5) partly in the said parish of Stanwell and partly in the parish of Staines situate between Stanwell New Road on the east the occupation-road leading from Stanwell New Road westwards towards Staines Moor on the south and the Bonehead Ditch and the River Colne on the west and south-west;

A conduit or line or lines of pipes (Conduit No. 13) commencing in the said parish of Stanwell by a junction with the said Conduit No. 12 and terminating in the

said parish of Stanwell in the field numbered on the A.D. 1911.
 2500 scale Ordnance map 2nd edition 1895 (Middlesex
 sheet No. XIX-15) 180 in the said parish;

A conduit or line or lines of pipes (Conduit No. 14) commencing in the said parish of Stanwell in the said Reservoir No. 5 and terminating in the said parish of Stanwell in the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1895 (Middlesex sheet No. XIX-15) 180 in the said parish;

A conduit or line or lines of pipes (Conduit No. 15) wholly in the said parish of Stanwell commencing in the said Reservoir No. 5 and terminating in the northernmost of the existing Staines reservoirs of the Board;

A storage reservoir (Reservoir No. 6) partly in the parish of Laleham and partly in the parish of Littleton situate between the existing aqueduct of the Board on the north and the road leading from Ashford to Laleham on the west and adjoining on the eastern side the Reservoir No. 7 by this Act authorised and hereinafter described;

A storage reservoir (Reservoir No. 7) partly in the said parish of Littleton partly in the parish of Shepperton and partly in the parish of Sunbury situate between the existing aqueduct of the Board on the north Charlton Road on the east and the road leading to Ashford from the road between Littleton and Ashford Common on the north-east and adjoining on the western side the Reservoir No. 6 by this Act authorised ;

A cut (Cut No. 6) wholly in the said parish of Laleham commencing by a junction with the River Thames at a point 24 chains or thereabouts south-eastward of Penton Hook Lock and terminating in a pumping station proposed to be constructed by the Board in the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1896 (Middlesex sheet No. XXIV-7) 77 in the said parish;

A conduit or line or lines of pipes (Conduit No. 16) wholly in the said parish of Laleham commencing in the proposed pumping station lastly hereinbefore referred to and terminating in the said Reservoir No. 6;

A conduit or line or lines of pipes (Conduit No. 17) commencing in the said parish of Laleham by a junction

A.D. 1911.

- with the Conduit No. 16 by this Act authorised and terminating in the said parish of Littleton in the said Reservoir No. 7;
- A conduit or line or lines of pipes (Conduit No. 18) commencing in the said parish of Littleton in the said Reservoir No. 6 and terminating in the said parish of Littleton in the said Reservoir No. 7;
- A conduit or line or lines of pipes (Conduit No. 19) commencing in the said parish of Littleton in the said Reservoir No. 6 and terminating in the said parish of Littleton in the said Reservoir No. 7;
- A conduit or line or lines of pipes (Conduit No. 20) commencing in the said parish of Littleton in the said Reservoir No. 6 and terminating in the said parish of Littleton by a junction with the existing aqueduct of the Board;
- A conduit or line or lines of pipes (Conduit No. 21) commencing in the said parish of Littleton in the said Reservoir No. 7 and terminating in the said parish of Littleton by a junction with the existing aqueduct of the Board;
- A conduit or line or lines of pipes (Conduit No. 22) commencing in the said parish of Laleham in the said Reservoir No. 6 and terminating in the said parish of Laleham by a junction with the Conduit No. 23 by this Act authorised and hereinafter described;
- A conduit or line or lines of pipes (Conduit No. 23) commencing in the said parish of Littleton in the said Reservoir No. 7 and terminating in the said parish of Stanwell in the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1895 (Middlesex sheet No. XIX-15) 174 in that parish;
- A conduit or line or lines of pipes (Conduit No. 27) wholly in the said parish of Stanwell and in the northernmost of the existing Staines Reservoirs of the Board commencing at or near the north-eastern corner of that reservoir and terminating by a junction with the existing shaft in the said reservoir at or near the south-western corner thereof;
- A conduit or line or lines of pipes (Conduit No. 28) wholly in the said parish of Stanwell and in the southernmost of

the existing Staines reservoirs of the Board commencing at or near the south-eastern corner of that reservoir and terminating by a junction with the existing shaft in the said reservoir at or near the north-western corner thereof;

A.D. 1911.

An aqueduct or line or lines of pipes (Aqueduct No. 1) commencing in the said parish of Stanwell in a pumping station proposed to be constructed by the Board in the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1895 (Middlesex sheet No. XIX-15) 177 in the said parish and terminating in the parish of Wembley in the Reservoir No. 10 by this Act authorised and hereinafter described;

An aqueduct or line or lines of pipes (Aqueduct No. 2) wholly in the parish of Northolt commencing by a junction with the Aqueduct No. 1 by this Act authorised and terminating in the dock on the Grand Junction Canal (Paddington branch) belonging or reputed to belong to A. J. Frazer and Thomas Clayton (Paddington) Limited;

An aqueduct or line or lines of pipes (Aqueduct No. 3) wholly in the parish of Greenford commencing by a junction with the said Aqueduct No. 1 and terminating by a junction with a culvert under the Grand Junction Canal (Paddington branch);

An aqueduct or line or lines of pipes (Aqueduct No. 4) wholly in the said parish of Greenford commencing by a junction with the said Aqueduct No. 1 and terminating in the Reservoir No. 9 by this Act authorised and hereinafter described;

An aqueduct or line or lines of pipes (Aqueduct No. 5) wholly in the said parish of Greenford commencing by a junction with the said Aqueduct No. 1 and terminating by a junction with the Aqueduct No. 8 by this Act authorised and hereinafter described;

A service reservoir (Reservoir No. 9) wholly in the said parish of Greenford on the hill known as Horsendon Hill;

An aqueduct or line or lines of pipes (Aqueduct No. 6) commencing in the said parish of Greenford in the Reservoir No. 9 by this Act authorised and terminating in the parish of Perivale by a junction with the Grand

A.D. 1911.

Junction Canal (Paddington branch) near the bridge carrying the road from Brabsden Green to Perivale over the said canal;

A service reservoir (Reservoir No. 10) wholly in the said parish of Wembley on the hill known as Barn Hill;

An aqueduct or line or lines of pipes (Aqueduct No. 7) wholly in the said parish of Wembley commencing in the Reservoir No. 10 by this Act authorised and terminating by a junction with the stream known as Wealdstone Brook;

An aqueduct or line or lines of pipes (Aqueduct No. 8) commencing in the said parish of Greenford in the said Reservoir No. 9 and terminating in the parish of Acton by a junction with the existing mains of the Board in the road known as "Old Oak Lane" at or near the junction with that road of the road known as "Old Oak Common Lane";

An aqueduct or line or lines of pipes (Aqueduct No. 9) wholly in the said parish of Perivale commencing by a junction with the Aqueduct No. 8 by this Act authorised and terminating in a ditch at or near the south-western corner of the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1896 (Middlesex sheet No. XV-4) 17 in the said parish;

An aqueduct or line or lines of pipes (Aqueduct No. 10) commencing in the said parish of Wembley by a junction with the said Aqueduct No. 8 and terminating in the parish of Ealing by a junction with the existing mains of the Board in the road forming the southern boundary of the reservoir of the Board known as the "Fox Reservoir";

An aqueduct or line or lines of pipes (Aqueduct No. 11) wholly in the said parish of Ealing commencing by a junction with the Aqueduct No. 10 by this Act authorised and terminating by a junction with an existing main of the Board in the said road forming the southern boundary of the reservoir of the Board known as the "Fox Reservoir";

An aqueduct or line or lines of pipes (Aqueduct No. 12) wholly in the said parish of Acton commencing by a junction with the said Aqueduct No. 8 and terminating

by a junction with the Grand Junction Canal (Paddington branch); A.D. 1911.

An aqueduct or line or lines of pipes (Aqueduct No. 13) commencing in the parish of Norwood by a junction with an existing main of the Board in the road leading from Southall to Hanwell and terminating in the parish of Hanwell by a junction with a main proposed to be laid by the Board within their area of supply near Hanwell Bridge :

Provided always that the said aqueduct or line or lines of pipes (Aqueduct No. 2) shall not be connected with the dock referred to in the foregoing description thereof at a greater distance than four hundred feet eastward of the western end thereof as now existing and if at the date of the construction of the said aqueduct the said dock has been filled in beyond the said point the said aqueduct shall be connected at the western end of the said dock as then existing.

6.—(1) Subject to the provisions of this Act the Board may make in the line and situation shown upon the deposited plans and according to the levels shown upon the deposited sections the following work (that is to say):— Power to
divert
streams.

A cut (Cut No. 5) being a diversion of the River Ash wholly in the parish of Laleham and county of Middlesex commencing by a junction with the said river near the point at which the said river passes under the existing aqueduct of the Board near Ford Bridge and terminating by another junction with the said river.

(2) In addition to the foregoing work the Board may make all such diversions of the streams and watercourses (not being navigable) shown on the deposited plans as intended to be diverted as may be necessary or convenient for or in connection with the construction maintenance or use of the works by this Act authorised.

(3) Upon the completion of the respective diversions described or referred to in subsections (1) and (2) of this section the bed and banks of such portions of the said streams and watercourses as are situate either below the respective points of commencement of those diversions and within the limits of deviation for any works shown on the deposited plans or between

A.D. 1911. the respective points of commencement and termination of those diversions (as the case may be) shall by virtue of this Act vest in the Board and may be appropriated and used by the Board for the purposes of this Act or for any other purpose of their undertaking.

(4) Nothing in this section or done by the Board thereunder shall in any way alter or affect the boundary between any local areas formed by the streams or watercourses hereinbefore mentioned or referred to or any of them but such boundary shall continue as if the stream or watercourse forming the same had not been diverted and this Act had not been passed.

Subsidiary
works.

7. Subject to the provisions of this Act the Board may in connection with and as part of the works referred to in the sections of this Act of which the marginal notes are respectively "Power to make waterworks" and "Power to divert streams" make and maintain upon or in any lands within the limits of deviation for the said works respectively shown on the deposited plans all such intakes outfalls cuts channels catchwaters aqueducts culverts tunnels shafts adits sewers drains pipes junctions sluices by-washes weirs gauges sumps tanks filterbeds filters embankments dams retaining walls bridges roads approaches telegraphic and telephonic apparatus engines pumps machinery buildings tramroads aerial ropeways tramways lifts and appliances as may be necessary or convenient whether for constructing inspecting maintaining repairing cleansing managing working and using the said works or for the general purposes of their undertaking or otherwise.

Any telegraphic or telephonic apparatus made or maintained by the Board under this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to
Board to
make junc-
tions &c.

8. It shall be lawful for the Board to make maintain and use junctions connections and communications between all or any of the works referred to in the sections of this Act of which the marginal notes are respectively "Power to make waterworks" and "Power to divert streams" and any mains pipes conduits aqueducts culverts and other works of the Board made or to be made :

Provided that the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose

of laying pipes shall apply to the making maintenance and use of any such junctions connections or communications in any street. A.D. 1911.

9. Subject to the provisions of this Act the Board may make in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections the following roads (that is to say):— Power to make roads.

(1) A road (Road No. 3) wholly in the county of Middlesex commencing in the parish of Littleton by a junction with the existing road leading from Ashford Common to Littleton opposite the junction with that road of the road leading therefrom to Ashford and terminating in the parish of Sunbury by a junction with Charlton Road:

(2) A road (Road No. 5) wholly in the parish of Greenford and county of Middlesex commencing by a junction with the road through Brabsden Green at a point 3 chains or thereabouts northward of the public-house at Brabsden Green, known as the "Ballot Box" and terminating in the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1896 (Middlesex sheet No. XV-4) 253 in the said parish of Greenford:

(3) A road (Road No. 6) wholly in the said county of Middlesex commencing in the parish and urban district of Kingsbury by a junction with Salmon Street at or near the right angle bend in the said road at the north-western corner of the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1896 (Middlesex sheet No. XI-9) 212 in the said parish and terminating in the parish of Wembley in the field numbered on the said Ordnance map 85 in that parish.

10.—(1) Subject to the provisions of this Act the Board may stop up— Power to stop up road and foot-paths.

(a) So much of the road leading from Ashford Common to Littleton as extends from the point of commencement of the Road No. 3 by this Act authorised to a point in the said existing road 1 chain or thereabouts north-eastward of the southernmost corner of the field numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd

A.D. 1911.

edition 1895 (Middlesex sheet No. XXIV-8) 54 in the parish of Littleton the said portion of road being situate in the parish of Littleton in the county of Middlesex;

- (b) So much of the footpath in the parish of Stanwell in the county of Middlesex leading from Stanwell Moor to Staines passing near to Hammond's Farm as lies between the junction of the said footpath with the footpath in the said parish referred to in the section of this Act of which the marginal note is "Power to divert footpath" and the point at which the footpath so to be stopped up crosses the southern boundary of the property of the Board on the southern side of their existing aqueduct;
- (c) The footpath in the parish of Greenford in the county of Middlesex which leads from a point in the road between Brabsden Green and Perivale 5 chains or thereabouts southward of the public-house at Brabsden Green known as the "Ballot Box" and joins another footpath leading to Sudbury from a point in the said road 3 chains or thereabouts north-westward of the bridge carrying the same over the Grand Junction Canal (Paddington branch):

Provided that the Board shall not stop up the said portion of road until the Road No. 3 by this Act authorised is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Board and the road authority until two justices shall have certified that the said new road has been completed to their satisfaction and is open for public use. Provided also that before applying to the justices for their certificate the Board shall give to the road authority seven days' notice in writing of their intention to apply for the same.

(2) Upon the stopping up of the said footpath or portion of road and footpath respectively all public rights of way over the footpath or portion of road or footpath stopped up shall be extinguished and the Board may subject to the provisions of the Waterworks Clauses Act 1847 with respect to mines appropriate and use for the purposes of the works by this Act authorised or other the purposes of their undertaking the site of the footpath or portion of road or footpath stopped up.

A.D. 1911.

Power to
divert foot-
path.

12. Where this Act authorises the diversion of a public footpath and the stopping up of an existing public footpath or any portion thereof such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

Stopping up
footpaths
in case of
diversion.

Provided that the Board shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Repair of
roads foot-
paths &c.

A.D. 1911.

Power to
deviate.

14. In constructing the works by this Act authorised the Board may deviate from the lines thereof to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and may also subject as in this Act provided deviate from the levels shown on the deposited sections to any extent upwards not exceeding five feet and to any extent downwards Provided that no part of the works by this Act authorised and therein described as conduits or lines of pipes or aqueducts or lines of pipes shall be constructed above the surface of the ground except so far as is shown on the deposited sections.

Breaking up
of roads and
footpaths.

15. For the purpose of making or maintaining any of the works by this Act authorised or any subsidiary work in connection with such works the Board may open and break up any public road or public footpath shown on the deposited plans in connection with such works in under across or over which any of such works are authorised to be constructed Provided that where they open or break up any such road or footpath they shall be subject to the following obligations:—

(1) They shall with all convenient speed complete the work on account of which they open or break up the road or footpath and subject to the making and maintenance of the said work fill in the ground and make good the surface and restore the portion of the road or footpath to as good a condition as that in which it was when it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby:

(2) They shall in the meantime cause the place where the road or footpath is opened or broken up to be fenced and watched and to be properly lighted at night.

Temporary
stoppage of
roads and
footpaths.

16. In addition to any powers of stopping up diverting or interfering with roads or footpaths which the Board may lawfully exercise within their limits of supply the Board during the execution and for the purposes of any works by this Act authorised or any subsidiary works in connection with such works may temporarily stop up divert and interfere with any road or footpath outside their limits of supply which is shown on the deposited plans in connection with such works and may

for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in any such road from passing along and using the same but the Board shall provide reasonable access for persons bonâ fide going to or returning from any such house or any station goods yard or other railway premises to which such road affords access. A.D. 1911.

17. Subject to the other provisions of this Act the Board may for the purposes of and in connection with the several works authorised by this Act and within the limits of deviation for such works as shown on the deposited plans raise sink or otherwise alter the position of or may remove any sewer drain gas or water main pipe or any other obstruction of a like nature making in case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration or removal Provided that nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former of such Acts apply otherwise than in accordance with such provisions Provided also that the Board shall not raise sink or otherwise alter the position of any telegraphic line belonging to or used by the Postmaster-General except under and in accordance with the provisions of the Telegraph Act 1878. Alteration of position of mains and pipes.

18. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any of such works it may be necessary to underpin or otherwise strengthen the same Therefore the Board at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):— Underpinning of houses near works.

(1) At least ten days notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

(2) Each such notice if given by the Board shall be served in manner prescribed by section 19 of the Lands

A.D. 1911.

Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Board :

- (3) If any owner lessee or occupier of any such house or building or the Board as the case may require shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference :
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Board may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Board shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Board such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Board then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the arbitrator the Board shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation

in respect thereof be made by such owners within A.D. 1911.
 twelve months and by such lessees or occupiers
 within six months from the discovery thereof:

- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Board from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

19. If the works authorised by this Act are not completed within fifteen years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed. Provided that (except as regards any common or commonable lands) nothing in this section shall restrict the Board from extending their works mains and pipes from time to time whenever it shall be necessary for the purpose of increasing or distributing the supply of water within their existing limits of supply. Period for completion of works.

20. The works authorised by this Act shall be deemed part of the undertaking of the Board. Works to be part of undertaking of Board.

21. Nothing contained in this Act shall be deemed to affect or prejudice section 34 (Limiting powers of Board to abstract water) of the Metropolitan Water Board (Various Powers) Act 1907. As to limitation of Board's powers of abstracting water.

22.—(1) The Board or their contractors shall to the reasonable satisfaction of the councils erect and fit up infectious and other hospitals or infirmaries and temporary huts or other buildings necessary for the isolation treatment and accommodation of the servants and workmen employed by the Board and their contractors or the wives and children of such servants or workmen within the districts of the councils or some or one of such districts and particularly for such of them as may be Provision of hospital and other accommodation.

A.D. 1911. suffering from infectious disease and shall at all times during the construction of the works by this Act authorised maintain such hospitals or infirmaries and huts or buildings or such and so many thereof as the councils may reasonably require having regard to the number of persons for the time being employed on such works.

(2) The Board shall provide and pay for all such assistance whether of doctors surgeons or nurses as may be necessary and proper for the efficiency of all such hospitals or infirmaries.

(3) Any medical officer of health or other person authorised by the councils respectively acting in execution of the Public Health Act 1875 for the respective districts of the councils shall be entitled at any time to enter into inspect and examine any such hospitals infirmaries huts or other buildings in order to ascertain that the same are provided with proper and sufficient sanitary arrangements and that overcrowding is not permitted therein. If any such person be obstructed in the performance of his duty under this subsection the person so obstructing him shall be liable on summary conviction to a fine not exceeding forty shillings.

(4) The byelaws of the councils or any of them relating to buildings shall not apply to any hospitals infirmaries huts or other buildings to be erected by the Board or their contractors under this section.

(5) If any dispute shall arise under this section between the Board on the one hand and the councils or any of them on the other hand the same shall be determined on the application of any party to such dispute by the Local Government Board.

(6) If the Board or their contractors fail to erect fit up and maintain such hospitals or infirmaries huts or other buildings as required by this section they shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds and any such penalty may be recovered by the councils. Provided that the Board or their contractors shall not be liable to more than one penalty or more than one daily penalty in respect of any one and the same offence.

(7) For the purposes of this section the expression "the councils" means the several local sanitary authorities for the districts in which the works by this Act authorised or any part thereof are to be constructed the expression "infectious disease"

means any of the diseases specified in section 6 of the Infectious Disease (Notification) Act 1889 and so far as regards the district of any of the councils who have adopted the said Act any other disease to which the said Act has been applied by such council and the expression "daily penalty" means a penalty for every day on which an offence is continued after conviction thereof.

A.D. 1911.

23. Subject to the express provisions of the section of this Act of which the marginal note is "For protection of Lord Fitzhardinge" nothing contained in this Act shall be deemed to empower the Board to supply water outside their authorised limits of supply.

Prohibiting
supply of
water out-
side limits
of supply.

24. For the protection of the Great Western Railway Company the London and North Western Railway Company the London and South Western Railway Company the Great Central Railway Company the Metropolitan Railway Company and the Metropolitan District Railway Company (in this section referred to collectively and severally as "the railway companies") the following provisions in addition to any other provision for their protection or for the special protection of any of the railway companies contained in this Act or the Acts incorporated therewith shall apply unless otherwise agreed (that is to say):—

For pro-
tection of
railway com-
panies.

- (1) In constructing laying down altering improving enlarging extending maintaining repairing renewing or removing any works in exercise of any of the powers conferred by this Act or by any enactment incorporated therewith upon along across under or over the railways works lands or property of the railway companies or under over or across any level crossing over any such railway or under over across or in any way affecting the structure of any bridge or tunnel over or under such railways or the approaches to or roads over any such bridge or tunnel or any other road which the railway companies are or may be liable to maintain the same shall be done under the superintendence and to the reasonable satisfaction of the chief engineer of the railway company whose railways bridges tunnels works lands or other property or level crossing may be affected or by whom any such road is liable to be maintained (in this section

A.D. 1911.

called "the engineer.") and in accordance with plans specifications sections and detailed drawings (in this section referred to as "the plans") previously submitted to and approved in writing by the engineer or in case of difference settled by arbitration in manner hereinafter provided Provided that if the engineer shall not within twenty-eight days after the plans shall have been submitted for his approval notify to the Board in writing his disapproval thereof he shall be deemed to have approved the plans but such approval of the plans shall not deprive the railway companies of any right to which they may be entitled to claim compensation from the Board for damage caused to the railway or property of the railway companies or to the traffic thereon :

- (2) All such works shall be done by and at the expense of the Board who shall also make good and restore to the reasonable satisfaction of the engineer any property or works of the railway companies or any roads liable to be maintained by them affected by such works and shall to the like satisfaction maintain such roads (so far as the same may have been interfered with by the execution of such works) for three months after such restoration and for such further time (if any) not being more than twelve months in the whole as such roads shall continue to subside :
- (3) All such works and any matters incidental thereto or connected therewith shall be done and carried out by the Board at such times and in such manner as the engineer may reasonably direct and so as to cause as little injury as may be to the railways bridges tunnels works lands and property of the railway companies or to any road which such companies may be liable to maintain :
- (4) In the execution or maintenance of any such works or incidental matters the Board shall not at any time or in any manner cause any injury or damage or (so far as can be avoided) any interruption impediment or delay to the safe passage and conduct of traffic over the railways or at to or from the stations sidings or works of the railway companies :

- (5) If any such injury damage interruption impediment or delay shall be caused by or be attributable to any of such works or incidental matters or by or to the acts or defaults of the Board or their officers servants contractors or workmen or any other person employed in connection with such works or by or to the failure of any such works (such injury damage interruption impediment or delay not being the result of inevitable accident) the Board shall indemnify and save harmless the railway companies from all and any claims and demands which may be made upon the railway companies in connection with such injury damage interruption impediment delay or failure and shall also make compensation to the railway companies in respect of any loss or injury which they may sustain or any expense to which they may be put in connection with any such injury damage interruption impediment delay or failure and the amount of such compensation shall in case of difference be settled by arbitration in the manner hereinafter provided: A.D. 1911.
- (6) Notwithstanding anything contained in this Act or any enactment incorporated therewith the Board shall not without the consent in writing of the railway companies under their common seal purchase or acquire any of the lands or property of the railway companies but the Board may acquire and the railway companies shall if required grant to the Board an easement or right of constructing and maintaining the works by this Act authorised on through in under over or along such lands and property and the sum to be paid for the acquisition of such easement or right shall be settled in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement. Provided always that where the Board shall have acquired any such easement or right as aforesaid nothing in this Act shall prevent the railway companies from using their lands and property as they may think fit subject to such reasonable protection for the works of the Board as may be agreed or settled by arbitration in manner hereinafter provided:

A.D. 1911.

- (7) The Board shall so construct maintain and work any wires and apparatus for the transmission of messages or reservoir level indications by means of electricity which they may establish under the powers of this Act as not to interfere with the working of any telephone telegraph train signalling or other apparatus of the railway companies by any stray currents induction or contacts and if any such interference shall take place the railway companies shall be at liberty to construct and provide an insulated return to the circuits affected by such interference or to do such other works as may be reasonably necessary and the Board shall on demand pay to the railway companies the reasonable cost of constructing and providing such insulated return or of such other necessary works as aforesaid :
- (8) The railway companies may if they so elect to do themselves carry out at the cost charges and expenses of the Board any works upon in under across or affecting their railways lands works or property except the provision of pipes and laying and jointing the same which shall be done by the Board :
- (9) If the railway companies at any time or times hereafter require (of which they shall be the sole judges) to adapt their railways or any part or parts thereof for working by electrical power or to construct any additional or other works upon their lands or railways or in connection therewith or to widen alter reconstruct or repair their railways bridges tunnels subways viaducts or works upon across over or under which any of the works of the Board may have been constructed or laid or if at any time or times hereafter a bridge shall be constructed in substitution for a level crossing upon across over or under which any of the works of the Board may have been constructed or laid the railway companies may on giving to the Board twenty-eight days notice in writing under the hand of their secretary or general manager of their intention so to do at their own expense divert alter support or carry the said works

of the Board across over or under their railways lands works or property at any other point doing as little damage as may be and without being liable to pay compensation in respect of such diversion alteration supporting or carrying such works Provided always that such diversion or alteration shall be done without unduly interfering with the supply of water by the Board :

A.D. 1911.

- (10) In the execution or alteration by the railway companies of any works of the Board under either of the two last preceding subsections the same shall be done under the superintendence and to the reasonable satisfaction of the engineer to the Board and in accordance with plans specifications sections and detailed drawings previously submitted to and approved in writing by the said engineer or in case of difference settled by arbitration in manner hereinafter provided and if the said engineer shall not within twenty-eight days after the said plans specifications sections and detailed drawings shall have been submitted for his approval notify to the railway companies in writing his disapproval of the same he shall be deemed to have approved thereof and the railway companies shall not at any time or in any manner cause any avoidable interruption in the supply of water by the Board and if any such interruption shall be caused by or be attributable to the works of the railway companies or to the acts or defaults of such companies or their officers servants contractors or workmen or any other person employed in connection with such works or from the failure of any such works the railway companies shall indemnify and save harmless the Board from all and any claims and demands which may be made upon the Board in connection with such interruption and shall also make compensation to the Board in respect of any loss or injury which they may sustain or any expense to which they may be put in connection with such interruption and the amount of such compensation shall in case of difference be settled by arbitration in the manner hereinafter provided :

A.D. 1911.

- (11) If having regard to the proposed position of any work to be executed by the Board in relation to the position of the works of the railway companies at any point where the works of the Board will be constructed over under or along any railways or works of the railway companies it becomes reasonably necessary that any of the works of the railway companies should be altered the railway companies may execute the works reasonably necessary for such alteration and the reasonable costs of executing such works shall be repaid by the Board to the railway companies :
- (12) Nothing in this Act contained shall enable the Board except by agreement with the railway companies to raise sink remove or otherwise alter the position of any railways sidings embankments bridges tunnels stations and works of a similar character belonging to the railway companies :
- (13) If by reason of the execution of any of the works of the Board it shall become necessary to reconstruct alter strengthen underpin or in any wise interfere with the structure of any bridge tunnel or other work of the railway companies such alteration reconstruction strengthening or underpinning shall be carried out by the railway companies at such times and in such manner as they may reasonably think expedient or necessary and the reasonable cost thereof shall be borne by the Board :
- (14) The Board shall bear and on demand pay to the railway companies affected by the construction laying down alteration improvement enlargement extension maintenance renewal or removal of or the execution of repairs to any works of the Board all reasonable costs of the superintendence by the railway companies of the said works and repairs and of watching lighting and protection of the railways and works of the railway companies with reference to and during such works or repairs but such superintendence shall not relieve the Board from liability for any accidents which may be occasioned by or through any act or default of the Board or any contractors agents or

workmen or other person or persons employed in or about the execution and carrying out of such works or repairs :

A.D. 1911.

- (15) Any dispute or difference which may arise between the railway companies and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out by the Board or by the railway companies shall be settled by arbitration by an engineer or other fit person to be agreed upon between them or failing such agreement to be appointed by the President of the Institution of Civil Engineers on the application of the railway companies and the Board or either of them.

25.—(1) Before commencing any of the works by this Act authorised in or under any street or road in or under which any mains pipes syphons or other works (hereinafter called “apparatus”) of any company authorised by any Act of Parliament or Provisional Order confirmed by an Act of Parliament to supply gas or water or any sewers drains or pipes (hereinafter called “pipes”) of the council of any urban or rural district or of any parish (each of which companies and councils is hereinafter referred to as “the protected body”) are situate the Board shall deliver to the protected body plans sections and descriptions of all works so proposed to be executed describing the proposed manner of executing the same and such plans sections and descriptions shall be delivered to the protected body at least twenty-one days before the commencement of any such work.

General provisions for protection of gas and water mains and sewers.

If it should appear to the protected body that such works will interfere with or endanger any of their apparatus or pipes or impede the supply of gas or water by means of such apparatus or the flow of sewage or drainage through such pipes the protected body may give notice to the Board to lower or otherwise alter the position of such apparatus or pipes or to support the same or to substitute temporarily or otherwise other apparatus or pipes in such manner as may be considered necessary and to lay or place under any apparatus or pipes cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution or laying or placing cement concrete or other like substance (hereinafter called “protective works”) shall be settled as hereinafter provided

A.D. 1911. such works of the Board (so far as the same are intended to be constructed underground) to be constructed so that not less than three feet shall anywhere be left between the crown of the said works and the road surface. All such protective works shall save as hereinafter provided be done and executed by and at the expense of the Board but to the satisfaction and under the superintendence of the engineer of the protected body and the reasonable costs charges and expenses of such superintendence shall be paid by the Board. If any protected body by notice in writing to the Board within fourteen days after the receipt by them of notice of the intended commencement by the Board of any such works of the Board so require the protected body may by their own engineer or workmen do and execute protective works so far as they affect the apparatus or pipes of the protected body and the Board shall on the completion thereof pay to the protected body the reasonable expenses incurred by them in the execution of such protective works.

(2) In the event of the plans sections and descriptions so delivered to the protected body as aforesaid not being objected to within fourteen days from such delivery the works shown and described thereon shall be executed in strict accordance therewith.

(3) The protected body may if they deem fit employ watchmen or inspectors to watch and inspect the works whereby any apparatus or pipes of the protected body will be interfered with or affected during the construction repair or renewal of such works and the reasonable wages of such watchmen or inspectors shall be borne by the Board and be paid by them to the protected body.

(4) If any interruption in the supply of gas or water by means of any apparatus or in the flow of sewage or drainage through any pipes shall without the written authority of the protected body be in any way occasioned either by reason of the exercise of the statutory powers conferred upon the Board or by the act or default of the Board or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Board shall forfeit and pay to the protected body for the use and benefit of the protected body a sum not exceeding ten pounds for every day during which such interruption shall continue.

(5) The expense of all repairs or renewals of any apparatus or pipes of the protected body or any works in connection there-

with which may be rendered necessary either by reason of the exercise of the statutory powers conferred upon the Board or by the acts or defaults of the Board their contractors agents workmen or servants or any person in the employ of them or any or either of them or rendered necessary by reason of any subsidence resulting from the works of the Board whether during the construction of such works or within twelve months of the completion thereof shall be borne and paid by the Board. A.D. 1911.

(6) It shall be lawful for the protected body and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands works and premises of the Board at any point or place where there are existing apparatus or pipes of the protected body and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining or removing or replacing or extending such apparatus or pipes under or over the same lands and premises Provided always that in so doing the protected body their engineers or workmen or others in the employ of the protected body shall not interrupt the user of any of the works of the Board by this Act authorised And provided also that the protected body shall make good and reimburse to the Board all damages to such works occasioned by the exercise of the powers by this section reserved to the protected body.

(7) If any difference shall arise with respect to any matter under this section between the Board and the protected body or their engineer or concerning any plans sections or descriptions to be delivered to the protected body under the foregoing provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and the costs of such arbitration shall be borne and paid as the arbitrator shall direct and in settling any question under this section an arbitrator shall have regard to any duties or obligations which the protected body may be under in respect of their apparatus or pipes and may if he thinks fit require the Board to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the protected body's apparatus or pipes are used.

26. If any work authorised by this Act involves the removal or alteration of any Post Office letter box the Board shall not remove or alter such box but shall give notice to the Postmaster- As to removal of Post Office letter boxes.

A.D. 1911. General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Board shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration.

For protection of Duke of Northumberland.

27. The following provisions for the protection and benefit of the Most Noble Henry George Duke of Northumberland (in this section referred to as "the Duke") shall except in so far as may be otherwise agreed in writing between the Duke and the Board apply and have effect (that is to say):—

- (1) Nothing in this Act contained shall authorise or empower the Board to abstract intercept lessen or injuriously affect the flow of water in the Duke of Northumberland's river otherwise the Isleworth Mill River or the banks thereof and if any damage shall be done arising from any defect in or failure of the works the Board shall forthwith at their expense make good the same:
- (2) Before the Board commence the laying or construction of any aqueduct or line or lines of pipes under the said river or to take use or in any manner interfere with the bed or banks of the said river or any part thereof the Board shall supply to the Duke complete and detailed plans sections and particulars of the manner in which the Board propose to make such aqueduct or line or lines of pipes where the same is intended to cross under the said river and shall twenty-eight days at least before commencing such construction or any works connected therewith give notice in writing of their intention to commence such works by leaving such notice or sending the same by registered letter to the Duke at Alnwick Castle in the county of Northumberland and shall accompany such notice with such complete and detailed plans sections and particulars as hereinbefore provided:
- (3) The Duke shall be at liberty within twenty-eight days after the receipt of such notice plans sections and particulars to signify his approval or disapproval thereof. If the Duke for the period of twenty-eight days does not signify his disapproval he shall be deemed to have approved the said plans sections and

particulars and the Board may proceed with the works in accordance with such plans sections and particulars : A.D. 1911.
—

- (4) The whole of the said works shall be executed to the reasonable satisfaction of the engineer of the Duke and all such works shall be done and executed and thereafter maintained in substantial repair by and at the expense of the Board and the Board shall bear the reasonable expense of and incident to the watching by the engineer of the Duke of all or any of the said works during the progress thereof and until the completion of the same :
- (5) In case the Duke within the said period of twenty-eight days signifies his disapproval of the said plans sections or other particulars and the Duke and the Board do not otherwise agree any difference between them with reference to the construction of the said aqueduct or line or lines of pipes or works shall be determined by an independent water engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

28. For the benefit and protection of the Willesden Urban District Council (in this section called "the Willesden Council") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections unless otherwise agreed on in writing between the Willesden Council and the Board have effect (that is to say) :—

For protection of Willesden Urban District Council.

- (1) The aqueduct or line of pipes No. 8 (hereinafter called "Aqueduct No. 8") by this Act authorised where it passes under Acton Lane and the new road leading to the bridge over the Grand Junction Canal numbered 4 and 7 respectively on the deposited plans in the parish of Willesden shall be so constructed that the upper surface of the same shall be at least two feet below the inverts of the sewers and drains of the Willesden Council in or adjacent to those roads and the Board shall construct efficient concrete piers to support the said sewers and drains where the same are crossed by the said aqueduct and shall bear the cost reasonably incurred by the Willesden Council in

A.D. 1911.

strengthening and securing any such sewer or drain from damage which may be likely to be occasioned by reason of the execution of any works by the Board:

- (2) The Board shall not during the construction of Aqueduct No. 8 and the works in connection therewith at one and the same time temporarily stop impede obstruct or interrupt the traffic along Acton Lane and the said road leading to the bridge over the Grand Junction Canal so that one of the said roads shall always be kept free and open for traffic during such construction:
- (3) If in the course of the construction of the works by this Act authorised the Board shall break up or interfere with any street road or footpath vested in or maintained by the Willesden Council or any works belonging to them they shall make good all damage done by them to such street road footpath or works to the reasonable satisfaction of the engineer of the Willesden Council (hereinafter called "the engineer") and shall make good and repair for one year from the restoration of any such street road or footpath any sinking or subsidence caused by the execution of the said works. The Board shall be liable to pay and shall pay to the Willesden Council any damages penalties costs charges or expenses which may be recovered from the Willesden Council in some court of competent jurisdiction in respect of any injury loss or damages consequent upon or arising from the execution by the Board of any works under the authority of this Act (whether such injury or loss occurs either during or for twelve calendar months after the construction) and all moneys so paid by the Willesden Council on account of any such damages penalties costs charges or expenses shall be repaid to the Willesden Council by the Board on demand and in default thereof may be recovered by the Willesden Council from the Board in any court of competent jurisdiction. Provided always that the Board shall not be liable to reimburse the Willesden Council any sums which the Willesden Council may expend in compromising or settling any claims or demands in

respect of matters referred to in this section without A.D. 1911.
previously obtaining the Board's written consent: —

- (4) If any injury or damage is occasioned to the Willesden Council or to their lands sewers drains works or property or any part thereof either during the construction of Aqueduct No. 8 and the works in connection therewith or by any leakage therefrom or defect therein the Board shall forthwith make good and repair such damage or injury to the reasonable satisfaction of the engineer:
- (5) The Board shall not acquire the lands numbered 5 on the deposited plans in the parish of Willesden or any part thereof nor shall the Board construct or lay down Aqueduct No. 8 and the works in connection therewith in upon through or under the said lands or any part thereof or otherwise interfere with the said lands or any part thereof in any way:
- (6) The Board shall not commence Aqueduct No. 8 or any of the works by this Act authorised in the parish of Willesden until they shall have given to the Willesden Council at least twenty-eight days' notice in writing of their intention to commence the same by leaving such notice at the office of the clerk to the Willesden Council with plans and sections of the works nor until the Willesden Council shall have signified their approval of the same unless the Willesden Council shall fail to signify their approval or disapproval within twenty-eight days after service of the said notice and delivery of the said plans and sections in which event the Board may subject to the provisions of this section proceed forthwith with the construction of Aqueduct No. 8 and other works in accordance with the said plans and sections and in case such plans and sections are not agreed upon any difference between the Willesden Council and the Board with reference to any of the matters aforesaid shall be determined by arbitration as hereinafter provided:
- (7) All works to be executed and things to be done by the Board under the provisions of this section shall be executed and done at the expense of the Board

A.D. 1911.

under the superintendence and in every respect to the reasonable satisfaction of the engineer :

(8) The engineer and his assistants or other persons appointed by the Willesden Council shall from time to time and at all times during the construction of Aqueduct No. 8 and the works in connection therewith and any other works which may affect the roads sewers land or other property of the Willesden Council have full power to enter upon and inspect the same and the progress and condition thereof to see whether the provisions of this section are being complied with or otherwise :

(9) In case of any difference or dispute arising between the Willesden Council and the Board or their respective engineers touching or concerning the true intent and meaning of this section or the construction or carrying into effect of any of the works matters or things to be done or performed by the Board in pursuance thereof the same shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

For protection of guardians of poor of parish of Willesden.

29. For the benefit and protection of the guardians of the poor of the parish of Willesden (in this section called "the Willesden Guardians") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections unless otherwise agreed on in writing between the Willesden Guardians and the Board have effect (that is to say) :—

(1) Where the aqueduct or line of pipes No. 8 (hereinafter called "Aqueduct No. 8") passes through the lands numbered 24 on the deposited plans in the parish of Twyford and numbered 1 2 and 3 on the deposited plans in the parish of Willesden the said aqueduct shall be constructed in the line marked "centre line of Aqueduct No. 8" shown upon a plan which has been signed in duplicate by John James Done on behalf of the Willesden Guardians and by William Booth Bryan on behalf of the Board one copy of which plan has been deposited with the clerk to the

Willesden Guardians and another copy thereof with the clerk to the Board: A.D. 1911.

- (2) Where Aqueduct No. 8 passes alongside of or crosses any sewer or drain belonging to or vested in the Willesden Guardians the said aqueduct shall be carried under the said sewer or drain respectively in such manner that there shall be in each case a clear space of at least six inches between the top of the aqueduct and the sewer or drain and the Board shall construct to the reasonable satisfaction of the engineer of the Willesden Guardians an efficient concrete pier or piers for supporting the sewer or drain as the case may be and for protecting the sewer or drain from damage or injury :
- (3) The Board shall reinstate and make good and put into as complete a state of repair as they are at the commencement of the construction of Aqueduct No. 8 through any lands or property of the Willesden Guardians all roads ways footpaths sewers drains wires pipes and apparatus belonging to the Willesden Guardians which may be damaged or injured by reason of any of the works by this Act authorised and shall also for the period of twelve months after completion of such of the said works as affect any such road way or footpath make good and repair to the reasonable satisfaction of the engineer of the Willesden Guardians any sinking or subsidence of such road way or footpath caused by the existence or execution of the said works :
- (4) The Board shall not acquire the freehold of the properties numbered 24 on the deposited plans in the parish of Twyford and numbered 1 2 and 3 on the deposited plans in the parish of Willesden or any part thereof or any other lands belonging to the Willesden Guardians nor any surface rights in the said lands or any of them other than a right of way over the same with horses carts waggon and appliances for the purpose of the construction inspection maintenance repair or renewal of the aqueducts or lines of pipes authorised by this Act but shall only acquire an easement under the said lands for the purpose

A.D. 1911.

of constructing inspecting maintaining repairing or renewing Aqueduct No. 8 and the works in connection therewith by this Act authorised and such easement shall not be acquired by the Board after the expiration of five years from the passing of this Act but neither the Willesden Guardians nor any person lawfully claiming under them shall be permitted to place any building wall or erection or covering of asphalt or concrete or similar substance (except for the purposes of any roads or footpaths) which would impede or render more difficult or expensive the Board's unrestricted right of access at all times hereafter to Aqueduct No. 8 or pipes connected to Aqueduct No. 8 nor shall they plant any tree or large shrub over the said aqueduct:

- (5) If any injury or damage is occasioned to the Willesden Guardians or to their lands sewers drains works or property or any part thereof either during the construction of Aqueduct No. 8 or any works in connection therewith or by any leakage therefrom or defect therein the Board shall forthwith make good and repair such damage to the reasonable satisfaction of the engineer of the Willesden Guardians:
- (6) The Board shall at their own expense if required by the Willesden Guardians construct and maintain to the reasonable satisfaction of the engineer of the Willesden Guardians such works and apparatus as may be reasonably required by the Willesden Guardians for draining and carrying away any water which may leak or escape from Aqueduct No. 8 or works connected therewith into the lands of the Willesden Guardians:
- (7) The Board shall not commence Aqueduct No. 8 or other works under any lands or property of the Willesden Guardians unless they shall have given to the Willesden Guardians at least twenty-one days' notice in writing of their intention to commence the same by leaving such notice at the office of the clerk of the Willesden Guardians with plans and sections of the said works nor until the Willesden Guardians shall have signified their approval of the same unless the Willesden Guardians shall fail to signify their

approval or disapproval within twenty-one days after service of the said notice and delivery of the said plans and sections in which event the Board may proceed forthwith with the construction of Aqueduct No. 8 or other works in accordance with the said plans and sections and in case such plans and sections are not agreed upon any difference between the Willesden Guardians and the Board with reference to any of the matters aforesaid shall be determined by arbitration as hereinafter provided : A.D. 1911.

- (8) All works to be executed and things to be done by the Board under the provisions of this section shall be executed and done by and at the expense of the Board and in every respect to the reasonable satisfaction of the engineer of the Willesden Guardians and the Board shall comply with and conform to all reasonable requests of the said engineer in the execution of the said works and the doing of the said things and the Board shall pay the reasonable expenses incurred by the Willesden Guardians in watching the execution of or in connection with any of the works and things aforesaid :
- (9) The engineer of the Willesden Guardians and his assistants or other persons appointed by the Willesden Guardians shall from time to time and at all times during the construction of Aqueduct No. 8 and other works have full power to enter upon and inspect the same and the progress and condition thereof to see whether the provisions of this section are being complied with or otherwise :
- (10) Nothing in this Act shall interfere with or prejudice the right of the Willesden Guardians their lessees successors or assigns without payment or compensation of any kind to the Board to construct erect lay and maintain in upon over or under any lands belonging to the Willesden Guardians under which Aqueduct No. 8 or any part thereof or any other works is or are to be constructed and maintained any roads ways footpaths sewers drains wires cables mains pipes or other works or apparatus as the Willesden Guardians may think fit to construct erect or lay over or under

A.D. 1911.

or alongside of Aqueduct No. 8 or other works
Provided always that no such works of the Willesden
Guardians shall prejudicially affect or interfere with
the said aqueduct or works of the Board or with
access thereto :

- (11) Before commencing and during the construction and
until the completion of Aqueduct No. 8 and the
restoration of the excavation for the said aqueduct
through the lands and property of the Willesden
Guardians the Board shall at their expense erect
maintain and keep in good repair and condition a
fence to the satisfaction of the Willesden Guardians
so as to prevent unauthorised persons from gaining
access to the property of the Willesden Guardians
through or by means of the said excavation :
- (12) In case of any difference or dispute arising between
the Willesden Guardians and the Board or their
respective engineers touching or concerning the true
intent and meaning of this section or the construction
or carrying into effect of any of the works matters
or things to be done or performed by the Board in
pursuance thereof the same shall be determined by
arbitration in manner provided by the Arbitration
Act 1889.

For protec-
tion of Lord
Fitzhard-
inge.

30. For the protection of Lord Fitzhardinge and his sequels
in title and others the owners of the lands in the parish of
Harlington now known as Pinkwell Farm (hereinafter referred
to as "the owner") the following provisions unless otherwise
agreed shall apply and have effect:—

- (1) If at any time within two years from the date of the
completion of Aqueduct No. 1 the water supply of the
said Pinkwell Farm shall owing to the construction
and maintenance of Aqueduct No. 1 be diminished
to such an extent as to render necessary a new or
additional supply of water for the purposes of the
said farm the Board shall supply free of cost such
new or additional supply of water in such manner as
shall be agreed :
- (2) Before constructing Aqueduct No. 1 across the road
being the continuation of Pinkwell Lane in the parish

of Harlington which said lane runs westward out of the road leading from Dawley to Harlington the Board shall acquire a strip of land being not less than one hundred feet in length and thirty feet or thereabouts in width on the south side of the said road measured from a point fifty feet or thereabouts on the east side of the centre line of the site at which Aqueduct No. 1 will run across the said road to a point fifty feet or thereabouts on the west side of the said centre line and shall widen the said road between such points to the extent of such strip of land so as to give uninterrupted access to all lands now the property of the owner both during the construction and the maintenance of the works by this Act authorised : A.D. 1911.

- (3) If for the purposes of such widening it shall become necessary to remove any existing hedge fence or gate the Board shall provide and erect a new fence and gate in place thereof for the purpose for which such existing hedge fence or gate has been maintained :
- (4) All works whether permanent or temporary constructed by the Board across the said widened road shall be constructed and maintained at such depth and in such manner as at all times to preserve to the owner as full and free use of the widened road for all purposes as he would have had of the existing road if such works had not been constructed :
- (5) The Board shall erect a gate in the fence on each side of the said road at the points where any tramway of the Board crosses the said road and shall keep the same continually fastened except to allow of the passage across the said road of any tramcar or vehicle used by the Board upon the said tramway or on land the property of the Board :
- (6) Any dispute which may arise between the owner and the Board upon any matter referred to in this section shall be submitted to an engineer to be appointed in default of agreement by the President of the Institution of Civil Engineers and in all other respects the Arbitration Act 1889 shall apply.

A.D. 1911.

For pro-
tection of
London
and South
Western
Railway
Company.

31. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

Conduit No. 23 shall be carried under the railway and property of the South Western Company and for twenty-five feet on either side thereof by means of a culvert which shall be constructed and thereafter maintained by the Board so as to admit of the said conduit being examined to ascertain its condition and state of repair and to effect the repairs and renewals thereof and such culvert shall be constructed so as not to interfere with the drainage of the railway.

For pro-
tection of
Regent's
Canal and
Dock Com-
pany and
Grand Junc-
tion Canal
Company.

32. Whereas the aqueduct or line or lines of pipes (Aqueduct No. 1) by this Act authorised (in this section called "the said aqueduct") is intended to be carried under certain lands numbered on the deposited plans 31 in the parish of Hayes and used as a feeder from the Ruislip Reservoir for the supply of the Paddington Long Level of the Grand Junction Canal and of the Regent's Canal Now therefore the following provisions for the protection of the said feeder shall unless otherwise agreed between the Board and the company of proprietors of the Grand Junction Canal and the Regent's Canal and Dock Company (hereinafter referred to as "the two canal companies") apply and have effect (that is to say):—

(1) The said aqueduct shall be carried under the said feeder so that no part of the said aqueduct or any works in connection therewith shall where passing under the feeder be less than three feet (unless otherwise agreed) below the present bed of the feeder at the point of crossing:

(2) The Board shall not acquire any land or property of the two canal companies or either of them but shall only acquire such an easement in or under such part of the same as may be required for laying maintaining inspecting and renewing the said aqueduct in accordance with the provisions of this section:

(3) All the works of the Board so far as situate in or under or otherwise affecting the feeder shall be constructed and for ever thereafter maintained in good

and substantial repair by and at the expense of the Board and the said aqueduct and works connected therewith and all future repairs thereof shall be constructed laid down and executed under the superintendence and to the reasonable satisfaction of the engineer of the Regent's Canal and Dock Company and according to plans sections and specifications previously approved by such engineer:

A.D. 1911.

- (4) If in constructing or laying down the said aqueduct and works connected therewith or in executing any repairs alterations or renewals thereof the Board cut into or interfere with the feeder or the banks thereof all such works shall be executed so as to cause as little leakage or loss of water as possible from the feeder Any temporary interruption to or interference with the access to and along the feeder for the purpose of maintaining and cleansing the same shall be made under the superintendence and to the reasonable satisfaction of the engineer to the Regent's Canal and Dock Company:
- (5) If in the construction laying down maintenance repair or renewal of any of the works of the Board or by reason or in consequence of the failure or want of repair thereof any injury to the feeder or any interruption to or interference with access to and along the feeder or any leakage or loss of water from the feeder shall be at any time occasioned the Board shall forthwith restore the feeder and property of the two canal companies to the same state and condition as before the happening of such damage and remove the cause of such interruption or interference and prevent such leakage or loss of water (as the case may be) under such superintendence and to such reasonable satisfaction as aforesaid and in their default it shall be lawful for the two canal companies or either of them to do the same and to recover the expense of so doing from the Board in any court of competent jurisdiction:
- (6) If at any time in the construction laying down maintenance repair or renewal of any of the works of the Board or by reason or in consequence of the failure

A.D. 1911.

or want of repair thereof the water of the feeder shall leak or escape or run to waste except with the consent of the two canal companies or if the access to or along the feeder shall be interrupted or interfered with except in the manner mentioned in subsection (4) of this section the Board shall after notice thereof given to the Board by the two canal companies or either of them pay to the two canal companies as and by way of compensation for any injury suffered by the two canal companies such sum as may be agreed between the Board and the two canal companies or failing agreement may be fixed by an arbitrator to be appointed by the President for the time being of the Institution of Civil Engineers:

- (7) If any difference shall arise between the Board and the two canal companies or either of them or between the engineer to the Board and the engineer to the Regent's Canal and Dock Company as to any plans sections or specifications or as to the mode of executing any work such difference shall be settled by an engineer to be agreed upon or to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protection of Longford River.

33. The work of construction under the Longford River of the Aqueduct No. 1 by this Act authorised shall be carried out under the direction and to the satisfaction of the engineer of the Commissioners of Works and the said aqueduct shall (unless and until the same shall be removed) for ever thereafter be so maintained and repaired by and at the cost of the Board to the satisfaction of such engineer that the bed of the said river shall not in any way be injuriously affected and that there shall be no interruption to the flow of the water of the said river.

For protection of Greenford Urban District Council.

34. In constructing the works by this Act authorised so far as the same are situate within the urban district of Greenford (in this section referred to as "the district") the following provisions for the protection of the urban district council of Greenford (in this section referred to as "the council") unless otherwise agreed in writing between the council and the Board

shall notwithstanding anything contained in this Act or shown on the deposited plans or sections have effect (that is to say):— A.D. 1911.

- (1) In the event of the council at any time requiring in exercise of the powers vested in them by the Public Health Acts to carry any sewers drains or other apparatus through across or under the works of the Board by this Act authorised within the district the Board shall not make any claim or charge against the council for the easement or right of laying maintaining renewing and repairing any such sewers drains or other apparatus but subject as aforesaid the provisions of the Public Health Acts shall apply to such sewers drains or other apparatus and to the council and the Board in respect thereof:
- (2) The Board shall not during the construction of any works or the alteration or deviation of any public road or footpath or watercourse within the district unnecessarily interrupt the public traffic over such road or footpath or the drainage of such watercourse:
- (3) The Board shall repay to the council the amount of any damages costs charges or expenses actually and reasonably incurred by the council in respect of any injury loss or damage to the public or to the roads footpaths or drainage of the district consequent upon or arising through the execution by the Board under the authority of this Act of any works within the district including the cost of any additional repairs to the highways in the district rendered reasonably necessary by the execution of such works:
- (4) In all cases where the Board shall under the powers of the section of this Act of which the marginal note is "Temporary stoppage of roads and footpaths" stop up for any period exceeding twenty-one days any road or footpath in the district the Board shall in lieu of the road or footpath so stopped up construct a sufficient temporary road or footpath and shall provide and erect such stiles and swing gates as may be required therefor:
- (5) All substituted roads or footpaths in the last preceding subsection of this section mentioned shall be con-

A.D. 1911.

structed so as to be as direct as may be reasonably practicable and made up with suitable material on the surface and drained and shall so long as the existing road or footpath shall remain stopped up be maintained by the Board in all respects to the reasonable satisfaction of the council :

(6) In the construction of Aqueduct No. 3 by this Act authorised and during the time or times such aqueduct is discharging water the Board shall if and so long as they shall use for the purposes of the said aqueduct the culvert under the Grand Junction Canal keep the said culvert clear and unobstructed so as not to prevent the free and uninterrupted passage through the same of surface water and land drainage from the area at present drained thereby :

(7) If the Board shall acquire the whole of the field numbered on the deposited plans 31 in the parish of Greenford they shall as soon as reasonably practicable after such acquisition convey to the council free of cost a portion thereof consisting of a strip of twenty feet in width adjoining the road on the western side of the said field Forthwith after such conveyance the council shall at their own expense erect and at all times thereafter maintain in good repair and condition a fence of such material and mode of construction as may be approved by the Board :

Upon the completion of the said fence the said strip of land shall become and at all times thereafter remain part of the public highway and shall be made up and maintained by the council as part of the said road :

(8) In case of any difference arising between the Board and the council under this section the same shall be determined by arbitration in manner provided by the section of this Act of which the marginal note is "General provisions for protection of gas and water mains and sewers" with respect to the settlement of differences under that section.

For protection of
conservators
of River
Thames.

35. For the protection of the conservators the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and sections have effect unless

otherwise agreed in writing between the Board and the con- A.D. 1911.
servators (that is to say):—

- (1) Cut No. 6 by this Act authorised including any temporary works connected therewith so far as they affect the bed and banks of the River Thames shall be executed and done in accordance with plans sections and particulars to be reasonably approved in writing by the conservators and such works shall be executed to the reasonable satisfaction of the engineer of the conservators:
- (2) The works referred to in the last preceding subsection shall when commenced be proceeded with and completed as early as practicable and the Board shall as soon as it shall become unnecessary to retain any temporary works in connection therewith and in any event within the period by this Act prescribed for the completion of the works thereby authorised upon reasonable notice from the conservators so to do remove the whole and every part of such temporary works and all materials for temporary works which may have been placed in the River Thames by the Board and on their failing so to do the conservators may remove the same charging the Board with the expense of so doing and the Board shall forthwith repay to the conservators all expenses so incurred:
- (3) The Board shall during the construction of any works over or upon the bed or banks of the River Thames hang out and exhibit at or near the said works every night from sunset to sunrise lights to be kept burning by and at the expense of the Board and proper and sufficient for the navigation and safe guidance of vessels and the Board shall also in like manner and at the like expense hang out and exhibit at or near the said work every day from sunrise to sunset such signals as may be reasonably proper and sufficient for the navigation and safe guidance of vessels and such lights and signals or any of them as the case may be shall from time to time be altered by the Board in such manner and be of such kind and number and be so placed and used as the conservators by writing under the hand of their secretary

A.D. 1911.

or other authorised officer shall reasonably approve or direct and in case the Board fail so to exhibit and keep burning the lights or to exhibit the signals they shall for every such offence forfeit to the conservators ten pounds which may be recovered by the conservators in a summary manner in any court of summary jurisdiction:

- (4) The Board shall not (except so far as shall be necessary in the construction of the works) take any gravel soil or other material from the bed of the river without the previous consent of the conservators signified in writing under the hand of their secretary:
- (5) Except as in this Act expressly provided to the contrary nothing therein contained shall extend to or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the conservators or to prohibit defeat alter or diminish any power authority or jurisdiction which at the time of the passing of this Act the conservators did or might lawfully claim use or exercise:
- (6) If any difference shall arise between the Board and the conservators as to any matter or thing under this section the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

For protection of
Great Western
Railway
Company.

36. For the protection of the Great Western Railway Company (in this section referred to as "the Great Western Company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

Aqueduct No. 1 shall be carried under the railways and property of the Great Western Company and for twenty-five feet on either side thereof by means of a culvert which shall be constructed and thereafter maintained by the Board so as to admit of the said aqueduct being examined to ascertain the condition and state of repair and to effect the repairs and renewals thereof and such culvert shall be constructed so as not to interfere with the drainage of the railways.

37. The following provisions for the protection of the Metropolitan District Railway Company (in this section referred to as "the District Company") in addition to any other provision for their protection contained in this Act or the Acts incorporated therewith shall unless otherwise agreed between the District Company and the Board have full force and be binding upon the Board:—

A.D. 1911.
For protection of
Metropolitan
District
Railway
Company.

(1) The aqueduct or line of pipes (Aqueduct No. 1) shall be carried over the railways works and property of the District Company within the parish of Wembley at such point within the limits of lateral deviation and in such manner as to leave a clear space between the abutments or supports carrying such aqueduct over the railway of not less than fifty-one feet and in accordance with such plans sections and drawings as shall be reasonably approved by the District Company:

(2) The aqueduct or line of pipes (Aqueduct No. 8) shall be carried under and across the railways works and property of the District Company by means of and in a culvert at such point within the limits of lateral deviation at such level and in such manner and in accordance with such plans sections drawings and specifications as shall be reasonably approved by the District Company:

(3) Any dispute or difference which may arise between the District Company and the Board with reference to the provisions of this section or in anywise arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of either the District Company or the Board and the Arbitration Act 1889 shall apply to such arbitration.

38. For the protection of the London and North Western Railway Company (in this section referred to as "the North Western Company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

For protection of
London
and North
Western
Railway
Company.

(1) Aqueduct No. 1 shall be carried under the railway and property of the North Western Company and for

A.D. 1911.

twenty-five feet on either side thereof by means of a culvert which shall be constructed and thereafter maintained by the Board so as to admit of the said aqueduct being examined to ascertain its condition and state of repair and to effect the repairs and renewals thereof and such culvert shall be constructed so as not to interfere with the drainage of the railway :

- (2) Aqueduct No. 8 shall be carried under the site of the railway authorised by the London and North Western Railway Act 1904 in the parish of Greenford by means of a culvert The said culvert shall be constructed so that the top thereof shall be at a level not higher than 105·14 feet above Ordnance datum and of such length as may be agreed between the engineers of the Board and the North Western Company or as may in case of difference be determined by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either of the parties by the President of the Institution of Civil Engineers If the said authorised railway shall not be constructed at the time when the Board are about to commence the construction of the said Aqueduct No. 8 the North Western Company shall give to the Board full information as to the line in which the said railway is to be constructed upon the lands comprised within the limits of deviation marked on the deposited plans relating to the said aqueduct.

For protection of
Grand Junction Canal
Company.

39. The following provisions for the protection of the company of proprietors of the Grand Junction Canal (hereinafter in this section called "the canal company") shall unless otherwise agreed between the Board and the canal company apply and have effect (that is to say):—

- (1) Except as hereinafter provided the Board shall not enter upon take or use either temporarily or permanently any land or property of the canal company Provided that the Board may acquire and the canal company may and shall sell such an easement or easements as may be necessary for the construction maintenance and use of Aqueduct No. 1 Aqueduct No. 2 Aqueduct No. 3 Aqueduct No. 6 Aqueduct No. 8

and Aqueduct No. 12 and the subsidiary works connected therewith by this Act authorised in manner authorised by this Act subject nevertheless to the provisions of this section and the consideration to be paid for any easement to be acquired by the Board under this section shall in case of dispute be determined in manner provided by the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement and for the purposes of any such determination the acquisition of such easement shall be deemed to be a taking of land within the meaning of section 6 of the Railways Clauses Consolidation Act 1845 :

A.D. 1911.

- (2) The crossings of the main line and of the Paddington arm of the canal of the canal company (both of which are hereinafter in this section included in the expression "the canal") by Aqueduct No. 1 and Aqueduct No. 8 in the parishes of Hayes and Perivale respectively shown on the deposited plans shall be effected by means of bridges each of which shall have a clear span over the canal and the towing-path and bank thereof of not less than seventy feet unless otherwise agreed measured on the square and a clear headway over the canal towing-path and bank of not less than ten feet above the weir level of the canal at the point of crossing and neither of the said bridges shall unless otherwise agreed exceed fifty-five feet in width :

Provided that in the event of either of the said bridges exceeding thirty-five feet in width that bridge shall have a clear headway over the canal towing-path and bank of not less than eleven feet above the weir level of the canal at the point of crossing and that the Board shall construct to the reasonable satisfaction of the engineer of the canal company a substantial waterway wall along the towing-path side of the canal beneath such bridge and for a distance of sixty feet on either side thereof :

- (3) The Board shall not use nor permit the said bridges or either of them to be used for any purpose other than

A.D. 1911.

for carrying the aqueducts of the Board over the canal or for the repair or renewal of the same The Board shall take all reasonable steps by guarding the approaches or otherwise to prevent unauthorised persons obtaining access to the said bridges:

- (4) The Board shall not in the construction of Aqueduct No. 1 and Aqueduct No. 8 deviate from the centre line of those aqueducts respectively as shown upon the deposited plans so as to construct any part of the said aqueducts respectively within the following distances from the water's edge of the canal (that is to say):—

As regards Aqueduct No. 1 in the parish of Greenford one hundred and fifty feet;

As regards Aqueduct No. 1 in the parish of Northolt fifty feet;

As regards Aqueduct No. 8 fifty feet:

Provided that nothing in this subsection shall prevent the Board from constructing either of the said aqueducts across the canal in accordance with subsection (2) of this section:

- (5) (a) No aqueduct authorised by this Act to connect with the canal or with a dock or culvert connected with the canal shall exceed twelve inches in internal diameter and every such aqueduct shall discharge into the canal dock or culvert as the case may be in such manner as shall be reasonably approved by the canal company's engineer:

(b) No water shall be discharged except in case of emergency into the canal dock or culvert as the case may be when the same is under repair or at any time when in the opinion of the engineer of the canal company such discharge would or might injure the canal dock or culvert or any of the works of the canal or interfere with or render less convenient the conduct of the traffic on the canal:

(c) Notwithstanding anything contained in the section of this Act of which the marginal note is "Temporary discharge of water into streams" the

Board shall not discharge any water into the canal or into any such dock or culvert as aforesaid except by means of the aqueducts referred to in this section or as may be agreed between the Board and the canal company : A.D. 1911.

- (6) The Aqueducts Nos. 1 2 3 6 8 and 12 so far as situate under the property of the canal company shall be at such level below the surface of the ground as shall be agreed between the engineer of the canal company and the engineer of the Board and in the event of any difference arising between the respective engineers with reference thereto the matter shall be referred to arbitration as in this section provided :
- (7) The Board shall at all times during the construction of the bridges referred to in subsection (2) of this section keep an uninterrupted navigable width of waterway in the canal of not less than thirty feet with a clear width of towing-path of not less than six feet and a clear headway above the level of such waterway of not less than nine feet and a clear headway above the towing-path of not less than eight feet :
- (8) The construction of the said bridges shall be completed and all temporary works in connection therewith shall be removed from the property of the canal company within six months from the commencement thereof respectively :
- (9) The aqueducts by this Act authorised and all works connected therewith so far as the same are situate over on or under or otherwise affect the canal or other property of the canal company or any dock or culvert connected with or passing under the canal and all future alterations repairs or renewals thereof respectively shall be constructed and executed according to plans sections and specifications submitted to and approved by the engineer of the canal company previously to the commencement of the work to which the same relates and shall be carried on and completed to the reasonable satisfaction of such engineer :

A.D. 1911.

- (10) The portions of the said aqueducts and other works referred to in the immediately preceding subsection shall be maintained in good and substantial repair by and at the expense of the Board and in the event of the Board at any time neglecting after notice from the canal company so to maintain the same the canal company may if they think fit execute such repairs as may be reasonably necessary and the expenses incurred by the canal company in so doing shall on demand be repaid to them by the Board:
- (11) The construction of the said aqueducts and other works of the Board and all future alterations repairs and renewals thereof shall be carried out and executed without causing any leakage or loss of water from the canal or any such dock or culvert as aforesaid and in such manner as to cause as little interference damage or injury as possible with or to the canal or the towing-path or banks thereof or to any such dock or culvert or with or to other property of the canal company and so as to occasion as little obstruction or impediment as possible to the traffic on the canal or the passage along the towing-path or the free flow of water along the canal either during the execution or after the completion of the works:
- (12) If in the construction maintenance alteration repair or renewal of the works of the Board or by reason or in consequence of the construction or use thereof or of any defect failure or want of repair thereof or by reason or in consequence of the exercise by the Board of any of the powers of this Act any such damage or injury or leakage or loss of water or obstruction or impediment as in the last preceding subsection mentioned shall at any time be occasioned or arise or shall reasonably be apprehended the Board shall forthwith when required in writing by the canal company so to do at their own expense restore the canal towing-path bank dock or culvert as the case may be to the same state and condition as before the happening of such damage or injury or stop or prevent such leakage or loss of water or further leakage or loss of water or remove the cause of such

obstruction or impediment or take all steps necessary to prevent the occurrence of any such damage injury leakage loss obstruction or impediment as the case may require to the satisfaction of the engineer of the canal company and in case of default by the Board in so doing or in cases of emergency it shall be lawful for the canal company to do the same and to take all steps which may be reasonably necessary to prevent the recurrence of such damage injury leakage loss obstruction or impediment as the case may be and the expense incurred by them in so doing shall on demand be paid by the Board to the canal company :

A.D. 1911.
—

- (13) The Board shall during the construction of the works of the Board over on under or otherwise affecting the property of the canal company or the execution of any alteration repairs or renewals thereof bear and upon demand pay to the canal company the reasonable expense of the employment of a sufficient number of inspectors or watchmen to be appointed by the canal company for watching their property with reference to and during the execution of the said works and for preventing so far as may be any damage obstruction or accident which may arise from any of the operations or from the acts or defaults of the Board or their contractors or any person in the employment of the Board or their contractors or otherwise :

- (14) Nothing contained in the section of this Act of which the marginal note is "Power to Board to make junctions &c." shall authorise the Board to lay down any aqueduct main conduit pipe or other work under through or along the canal or the towing-path thereof or over or across the same otherwise than by means of a public bridge and in such manner that no injury to or interference with the fabric of any such bridge maintainable by the canal company or obstruction to the traffic on the canal or towing-path shall be occasioned in the laying maintenance use alteration repair or renewal of any such aqueduct main conduit pipe or other work All works of the Board in

A.D. 1911.

connection with the laying down maintenance alteration repair or renewal of any aqueduct main conduit pipe or other work under through or along the canal or the towing-path thereof or other property of the canal company or over or across any bridge maintainable by the canal company and executed in pursuance of any power contained in the said section shall be executed under the superintendence and to the reasonable satisfaction of the engineer of the canal company and according to plans approved by him :

- (15) The acquisition by the Board of a right or easement of constructing or maintaining works over or under or otherwise affecting the property of the canal company shall not prevent the canal company from using such property for any purpose they may think fit provided no injury to or interference with the works of the Board is caused by such user :
- (16) In addition and without prejudice to the foregoing provisions of this section the Board shall compensate and indemnify the canal company for and in respect of all loss costs damages expenses claims and demands which the canal company may sustain or incur or which may be made against them by reason or in consequence of the construction maintenance alteration repair renewal or use of the works of the Board or the failure or want of repair thereof or by reason of any act or omission of the Board their contractors agents workmen or servants :
- (17) The fact that any work or thing has been executed or done in accordance with a plan approved by the canal company or with a requirement of the canal company or their engineer or to the satisfaction of such engineer or in accordance with any direction or award of an arbitrator shall not relieve the Board from any liability for damage caused to the property of the canal company or affect any claim competent to the canal company under this Act :
- (18) If any difference shall arise between the Board and the canal company or between their respective engineers

as to any plans sections or specifications or as to the mode of executing any works or as to the reasonableness of any requirement of the canal company or of their engineer such difference shall be settled by an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either the Board or the canal company. A.D. 1911.

40. The following provisions for the protection of the county council of the administrative county of Middlesex (in this section referred to as "the county council") shall apply and have effect as regards the works authorised by this Act unless otherwise agreed in writing between the Board and the county council (that is to say):— For protection of Middlesex County Council.

- (1) All works shall be so executed by the Board as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Board shall not break up at any one time a greater length than one hundred yards of any main road:
- (2) The Board shall in making any diversion of any stream or watercourse in or affecting the county of Middlesex under the powers of this Act make the same with good and sufficient banks and in such manner that the stream or watercourse as diverted shall be as commodious in all respects as the same was before such diversion and all such banks and works of diversion and works connected therewith shall be made and maintained in a good and substantial manner and to the reasonable satisfaction of the engineer of the county council (in this section referred to as "the county engineer") for a period of twelve months from the date of their completion:
- (3) All works affecting any light railway or tramway of the county council and all diversions of streams and watercourses in or affecting the county of Middlesex and all works including banks executed for the purpose of or in connection with any such diversion shall be carried out in accordance with plans to be previously

A.D. 1911.

submitted by the Board to and reasonably approved by the county council:

- (4) Sections 30 and 31 of the Waterworks Clauses Act 1847 in their application to any works by this Act authorised so far as such works affect any main road or county or main road bridge in the county of Middlesex shall (except in cases of emergency arising from accidental leakage or burst in which cases notice shall be given as soon as possible) be read and construed as if the notice required by the said section 30 to be given were not less than seven days and as if every such notice were to be accompanied by the plan required by section 31 of the said Act which plan shall be on a sufficient scale and with sufficient sections to show clearly the proposed works:
- (5) If any difference arises at any time between the county council or the county engineer and the Board touching this section or anything to be done or not to be done thereunder such difference shall be settled by the arbitration of an engineer to be agreed upon between the county council and the Board or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the Arbitration Act 1889 shall apply to such arbitration:
- (6) The provisions of this section shall be in addition to and (except so far as is therein expressly provided) not in substitution for or derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the county council.

For protection of
Staines
Rural District Council
and Stanwell Parish
Council.

41. For the protection of the Staines Rural District Council and the Stanwell Parish Council the following provisions shall unless otherwise agreed in writing between the Board and the councils apply and have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the embankment of the north-western corner of the Reservoir No. 5 by this Act authorised shall be constructed in the line shown on the plan marked "B" signed by the Right Honourable the Earl of Kintore the chairman

A.D. 1911.

of the joint committee of the House of Lords and the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy has been deposited in the Private Bill Office of the House of Commons) instead of in the lines shown on the deposited plans:

- (2) In all cases where the Board shall under the powers of the section of this Act of which the marginal note is "Temporary stoppage of roads and footpaths" stop up for any period exceeding twenty-one days any road or footpath in the rural district of Staines the Board shall in lieu of the road or footpath so stopped up construct a sufficient temporary road or footpath and shall provide or erect such stiles and swing gates as may be required therefor:
- (3) The Board shall within the limits of deviation make and maintain a drain between the points marked "C" and "D" on the said plan such drain to connect to the existing watercourse crossing Haws Lane at a point about eighty yards west of Heath Cottage:
- (4) If any difference shall arise between the Board and either council under this section such difference shall be referred to and determined by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

42. For the protection of Sir Alexander Doran Gibbons Baronet or other the owner or owners for the time being of the estate known as Stanwell Place in the parish of Stanwell in the county of Middlesex (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed upon in writing between the owner and the Board have effect (that is to say):—

For protec-
tion of Stan-
well Place
Estate.

- (1) Before commencing the construction of the Aqueduct No. 1 by this Act authorised upon or affecting any land or property of the owner the Board shall purchase and acquire from the owner the whole of the lands shown and coloured red on the plan marked "A."

A.D. 1911.

signed by the Right Honourable the Earl of Kintore the chairman of the joint committee of the House of Lords and the House of Commons to whom the Bill for this Act was referred of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy has been deposited in the Private Bill Office of the House of Commons :

- (2) The amount of the purchase money and compensation payable to the owner for the lands so to be purchased and taken shall failing agreement between the owner and the Board be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement :
- (3) The sale shall be subject to all existing tenancies and tenant right claims :
- (4) The fixtures of the mansion house of Stanwell Place the oak staircase at Hammond's Farmhouse and the other articles specified in the list dated the twenty-fourth day of May one thousand nine hundred and eleven and signed by Charles Whitbread Graham as representing the owner and by William Booth Bryan as representing the Board are reserved to the owner but shall not be removed by him unless and until the Board notify the owner in writing of their intention or shall commence to demolish the said mansion house and farmhouse The value of the said fixtures staircase and other articles if and when removed shall be paid by the owner to the Board and any difference as to such value shall be settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Royal Institute of British Architects :
- (5) The Board before constructing so much of the said Aqueduct No. 1 as is situate on lands of the owner other than the lands coloured red on the said plan shall cause plans and sections thereof showing all reasonable details to be submitted to the owner in order that he may suggest any reasonable deviation or alteration (within the limits of deviation for the said aqueduct shown on the deposited plans) in the

mode of carrying out the said work and in case of dispute as to the reasonableness of any such deviation or alteration the same shall be settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers Provided that if no suggestion be made within one month after the submission of the plans and sections such plans and sections shall be deemed to have been approved.

A.D. 1911.
—

43. For the protection of the company proposed to be incorporated by the Bill now pending before Parliament intituled "Greater London Railway Bill" the following provision shall unless otherwise agreed in writing apply and have effect in the event of the said Greater London Railway Bill becoming law in the present session of Parliament (that is to say):—

For protection of
Greater London
Railway
Company.

Any dispute or difference which may arise between the Board and the company as to the mode of construction of Aqueducts No. 1 and No. 2 shall unless otherwise agreed be referred to an arbitrator to be appointed on the application of either party by the President for the time being of the Board of Trade.

44. For the protection of the Staines Urban District Council in the county of Middlesex (in this section referred to as "the Staines Council") the following provisions shall unless otherwise agreed have effect namely:—

For protection of
Staines
Urban Dis-
trict Council.

- (1) In constructing and maintaining Conduit No. 23 by this Act authorised the Board shall not in any way interfere with the existing sewer or air-main or the existing culvert carrying the said sewer and main at Billet Bridge belonging to the Staines Council:
- (2) Nothing in this Act contained shall affect the right of the Staines Council to discharge the effluent from their sewage works into the River Ash and the Board shall in constructing the works for the diversion of the River Ash (Cut No. 5) by this Act authorised make all such provisions as may be reasonably necessary for preventing as far as possible any diminution of the volume of water in the said river or any

A.D. 1911.

interference with the discharge and flow of the said effluent:

- (3) The Board shall so construct and maintain Conduit No. 23 by this Act authorised as not to obstruct or impede the flow of flood waters from one side of the said conduit to the other by means of the existing drainage pipes and shall lay such other drainage pipes as shall be agreed upon between the Board and the Staines Council and failing agreement as shall be settled by arbitration in manner hereinafter provided:
- (4) If any difference shall arise between the Board and the Staines Council with respect to anything provided for in this section the same shall be settled by arbitration in manner provided for in subsection (7) of the section of this Act whereof the marginal note is "General provisions for protection of gas and water mains and sewers."

For protection of
Sunbury-on-Thames
Urban District Council.

45. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the Sunbury-on-Thames Urban District Council (in this section called "the council") shall unless otherwise agreed apply and have effect (that is to say):—

- (1) The Board shall bear and on demand repay to the council the costs and expenses reasonably incurred by them in the purchase of land for widening and in widening and reconstructing so much of Littleton Lane and Charlton Road as is in the district of the council up to a width throughout of thirty feet:

Provided that nothing contained herein shall prevent the council from widening and reconstructing that lane and road to a greater width than thirty feet but if they do so the additional expense incurred by them in so doing (beyond the costs and expenses above mentioned) shall not be repayable to them by the Board:

- (2) If any difference shall arise between the Board and the council under the provisions of this section or with regard to anything to be done or not to be done thereunder such difference shall be referred to and

determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either of the parties after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1911.

46. The following provisions shall unless otherwise agreed in writing between the Board and Thomas Walter Simpson of Greenfield Laleham in the county of Middlesex his heirs executors administrators and assigns (all of whom are in this section referred to as "the owner") apply and have effect for the benefit and protection of the owner (that is to say):—

For protection of Thomas Walter Simpson.

(1) Notwithstanding anything in this Act contained or shown on the deposited plans no part of the western toe of the embankment forming the western bank of Reservoir No. 6 by this Act authorised shall be constructed by the Board nearer to the residence of the owner than one hundred yards:

(2) No trees timber or underwood on the land between the eastern side of the road leading from Ashford to Laleham and an imaginary line drawn at a distance of twenty yards from the eastern side of such road shall be cut or interfered with except within the lines of the Cut No. 5 by this Act authorised as shown on the deposited plans.

47. For the further protection of the Staines Rural District Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the Board and the council apply and have effect (that is to say):—

For further protection of Staines Rural District Council.

(1) The Board shall bear and on demand repay to the council the costs and expenses reasonably incurred by them in purchasing land for the widening of and in widening and in reconstructing so much of Littleton Lane as is in the district of the council up to a width throughout of thirty feet Provided that nothing contained herein shall prevent the council from widening and reconstructing that lane to a greater width than thirty feet but if they do so the additional expense incurred by them in so doing

[Ch. cxviii.] *Metropolitan Water Board* [1 & 2 Geo. 5.]
(*New Works*) Act, 1911.

A.D. 1911.

(beyond the costs and expenses above mentioned)
shall not be repayable to them by the Board :

- (2) If any difference shall arise between the Board and the council under this section such difference shall be referred to and determined by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For pro-
tection of
Wembley
Urban Dis-
trict Council.

48. For the protection of the Wembley Urban District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the Board and the council have effect (that is to say):—

- (1) So much of Aqueduct No. 10 by this Act authorised as is to be constructed upon the lands of the council numbered on the deposited plans 109 and 110 in the parish of Wembley shall be constructed in the position approximately indicated on the plan signed by William Booth Bryan on behalf of the Board and by Cecil Robert William Chapman on behalf of the council and if any difference shall arise between the Board and the council as to the height or mode of construction of the embankment to be constructed by the Board upon the said lands such difference shall be determined by arbitration as hereinafter provided :
- (2) The Board shall grant to the council free of charge an easement or right of placing laying and maintaining sewers over or under any conduit or track within the district of the council at such points not being more than six in number as the council may at any time hereafter select The terms and conditions upon which such easements or rights are to be granted shall subject as aforesaid be such as may be agreed upon between the Board and the council or as may in case of difference be determined by arbitration as hereinafter provided :
- (3) The Board shall grant to the council free of charge the right to use for all purposes other than the treatment of sewage the surface of such portions of the said

properties numbered 109 and 110 in the parish of Wembley as may be acquired by the Board for the purposes of the said Aqueduct No. 10: A.D. 1911.

- (4) If any difference shall arise between the council and the Board under this section the same shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

49. For the protection of the Metropolitan Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):— For protection of Metropolitan Railway Company.

Aqueducts Nos. 1 and 7 shall be carried under the railway and property of the company and for fifteen feet on either side thereof by means of a culvert to be constructed and thereafter maintained by the Board of such form and description in such manner and at such levels as shall be reasonably required by the chief engineer for the time being of the company and so as to admit of the said aqueducts being examined to ascertain their condition and state of repair and to effect the repairs and renewals thereof and so as not to interfere with the drainage of the railway.

PART III.

LANDS.

50. Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works authorised by this Act (including in such works for the purposes of this section the diversions of footpaths streams and watercourses by this Act authorised): Power to acquire lands for purposes of works.

Provided always that the Board shall not except with the consent of the Native Guano Company Limited acquire any portion of the land premises and appurtenances at the southern side of the dock of the said company situate in the parish of Northolt or the property numbered on the deposited plans 13 in the said parish.

A.D. 1911.

Acquisition
of lands for
filter-beds
&c.

51. Subject to the provisions of this Act the Board may purchase compulsorily or by agreement the lands next hereinafter described for the purposes of filter-beds and other purposes connected therewith or incidental thereto (that is to say):—

Lands in the county of Middlesex partly in the parish of Stanwell and partly in the parish of Staines bounded on the east partly by Stanwell New Road and partly by the eastern boundary of the property of the Board adjoining their existing aqueduct on the south by the southern boundary of the property of the Board situate on the southern side of their existing aqueduct on the west by an imaginary straight line drawn approximately parallel with and at a distance of forty-nine chains or thereabouts westward of Stanwell New Road and on the north by an imaginary straight line drawn approximately parallel with and at a distance of twenty chains or thereabouts northward of the southern boundary of the fields respectively numbered on the $\frac{1}{2500}$ scale Ordnance map 2nd edition 1895 (Middlesex sheet No. XIX-15) 180 and 182 in the said parish of Stanwell.

Persons
under dis-
ability may
grant ease-
ments &c.

52. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
acquire ease-
ments only.

53. The Board may in lieu of acquiring any lands for the purposes of the conduits or lines of pipes by this Act authorised or so much of the aqueducts or lines of pipes so authorised as will be laid underground acquire such easements and rights in such lands as they may require for the purpose of constructing placing laying inspecting maintaining cleansing repairing conducting managing renewing or enlarging conduits aqueducts or pipes and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof

and the provisions of the Lands Clauses Acts shall apply to such easements and rights as fully as if the same were lands within the meaning of such Acts: A.D. 1911.

Provided that as regards any lands taken or used by the Board for the purpose of any such conduits aqueducts or pipes where such conduits aqueducts or pipes are laid underground the Board shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Board:

Provided also that (except as to land forming part of a street and except as provided by the section of this Act of which the marginal note is "Limiting common land to be taken") nothing in this section contained shall authorise the Board to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and (except as aforesaid) every notice to treat for the acquisition of an easement shall be endorsed with notice of this proviso:

Provided also that where the Board shall have acquired an easement or right of constructing or maintaining works upon the lands or property of any railway company nothing in this Act shall prevent such railway company from using such lands or property for railway purposes subject to such reasonable protection for the works of the Board as may be agreed or settled by arbitration.

54. The following provisions shall at the option of the Board be applicable with regard to all or any of the lands to be acquired by the Board for the purposes of such parts of the conduits or lines of pipes or aqueducts or lines of pipes by this Act authorised as are to be laid underground (that is to say):— Rights of passage over lands acquired by Board to be reserved in certain cases.

- (1) The Board shall not be required to fence off or sever such lands from any adjoining lands of the vendor but they shall upon the acquisition of such first mentioned lands grant to the vendor thereof and all

A.D. 1911.

persons lawfully claiming or to claim through or under him a full and free right of way or passage thereover at all times (except at such times as the said conduits aqueducts or lines of pipes shall be in actual course of construction repair or renewal) and either with or without horses carts carriages or waggon for all purposes of or connected with the use or enjoyment of such adjoining lands of the same description in all respects as he or they would have enjoyed or been entitled to exercise if the Board had not acquired such lands and also the right of constructing maintaining and using across the lands so acquired by the Board (but in such position and in such manner as the Board shall in writing first approve) roadways dedicated or intended eventually to be dedicated to the use of the public:

- (2) The jury arbitrators or other authority to whom the question of disputed compensation shall be referred shall in assessing the amount of such compensation take into account the provisions of this section and the benefits to accrue to the vendor thereunder:
- (3) The provisions of this section shall not apply with respect to any lands unless such provisions shall be stated in the notice to treat for the acquisition thereof.

Owners may be required to sell parts only of certain lands and buildings.

55. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Board of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Board and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Schedule to this Act and whereof a portion only is required for the purposes of the Board or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:

A.D. 1911.
—

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Board that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Board such portion only without the Board being obliged or compellable to purchase the whole the Board paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

(3) If within such twenty-one days the owner shall by notice in writing to the Board allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Board have compulsory powers of purchase) can be so severed :

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Board the portion which the tribunal shall have determined to be so severable without the Board being obliged or compellable to purchase the whole the Board paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

(5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion

A.D. 1911.

determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Board may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto, but that any such other portion as aforesaid can be so severed the Board in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Limiting
common land
to be taken.

56. Notwithstanding anything contained in this Act or shown on the deposited plans the Board shall not purchase or take for the purposes of the works by this Act authorised or for the purpose of filter-beds under the powers of the section of this Act of which the marginal note is "Acquisition of lands for filter-beds &c." any greater quantity of the common or commonable

land in the parish of Staines and county of Middlesex known as Staines Moor than two acres and two roods Provided that for the purpose of constructing laying and maintaining any underground conduit or line of pipes in or upon the said common or commonable lands the Board shall acquire an easement only and shall not enclose the surface of any lands in connection with any such easement: A.D. 1911.

Provided also that nothing in this section contained shall prevent the Board from at any time entering on such lands for the purposes of renewal or repair of any such conduits or lines of pipes as are referred to in the preceding proviso to this section.

57. Either before or as soon as reasonably practicable after they shall have acquired the portions of the common or commonable land in the parish of Staines and county of Middlesex known as Staines Moor required for the purposes specified in the section of this Act of which the marginal note is "Limiting common land to be taken" the Board shall acquire the portions of land coloured red on the plan marked "C" signed by the Right Honourable the Earl of Kintore the chairman of the joint committee of the House of Lords and House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office of the House of Lords one copy has been deposited in the Private Bill Office of the House of Commons and one copy has been deposited at the office of the Board) and as from the date of the acquisition of the said portions of common or commonable land or of the acquisition of the said lands coloured red (whichever of those dates shall be the later) the said lands coloured red shall be added to and form part of Staines Moor aforesaid and shall vest in the parties in whom Staines Moor is now vested and shall in all respects and for all purposes be deemed to be substituted for the portions of Staines Moor to be acquired by the Board under the powers of this Act. Lands to be substituted for portions of Staines Moor to be acquired.

58. The powers of the Board for the compulsory purchase or taking of lands or easements under this Act shall cease after the expiration of five years from the passing of this Act. Limit of time for compulsory purchase of lands &c.

59. In addition to any other lands which they are by this Act authorised to acquire and in addition and without prejudice to any other powers of acquiring lands by agreement the Board may by agreement purchase take on lease acquire and hold— Power to Board to purchase additional lands by agreement.

A.D. 1911.

(a) For the purpose of protecting from pollution any sources from which the Board are for the time being authorised to take water any lands not exceeding in the whole one hundred acres; and

(b) For any other purpose of their authorised undertaking any lands not exceeding in the whole two hundred acres;

but nothing in this section shall authorise the Board to create or permit the creation or continuance of any nuisance on such lands nor shall the Board sink any well upon or construct any works for taking or intercepting water from any lands acquired by them under this section.

The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Board may give or take money for equality of exchange.

Correction
of errors &c.
in deposited
plans and
book of re-
ference.

60. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Board after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Middlesex for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and such certificate shall be kept by such clerk of the peace with the other documents to which the same relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

Compensa-
tion in case
of recently
altered
buildings
acquired by
Board.

61. In settling any question of disputed purchase-money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the eleventh day of March one thousand nine hundred and ten if

in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. A.D. 1911.

62. The tribunal to whom any question of disputed purchase-money or compensation under this Act is referred shall if so required by the Board award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Board by the claimant giving sufficient particulars and in sufficient time to enable the Board to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Board have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant: Costs of arbitration &c. in certain cases.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Board to amend the statement in writing of the claim delivered by him to the Board in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Board if they object to the amendment and such amendment shall be subject to such terms enabling the Board to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

63. The Board may appropriate and use for any of the purposes of this Act or of their undertaking any lands which for the time being may be vested in them for any other purpose but not required for that purpose: Power to appropriate lands for purposes of Act &c.

Provided that nothing contained in this section or done thereunder shall confer upon the Board in relation to any such lands any power of taking impounding or appropriating water which would not be exerciseable by them in relation to such lands if this Act had not been passed.

A.D. 1911.

As to private
rights of way
over lands
taken com-
pulsorily.

64. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Board shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
retain sell
&c. lands.

65. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Board may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired by them under the powers of this Act or any interest therein and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take money for equality of exchange.

PART IV.

REVIVAL OF POWERS.

Revival of
powers for
construction
of certain
works autho-
rised by
Southwark
and Vaux-
hall Water
Act 1898.

66. The powers of the Board (as successors in title of the Southwark Company) for the construction and completion of the pumping station in the parish of Walton-on-Thames and the aqueduct conduit or line of pipes (Line of pipes No. 1) respectively described in and authorised by the Southwark and Vauxhall Water Act 1898 are hereby revived and continued and may be exercised until the expiration of one year from the passing of this Act.

PART V.

FINANCIAL PROVISIONS.

Power to
borrow.

67.—(1) The Board may from time to time (in addition to any moneys which they are now or may by any other Act which may be passed during the present session of Parliament be authorised to borrow) borrow at interest any sum or sums of

money for the purposes hereinafter mentioned not exceeding the A.D. 1911.
 respective amounts following (that is to say):—

- (a) For paying the costs charges and expenses of and in relation to this Act as hereinafter defined the sum requisite for that purpose:
- (b) For the execution of the works by this Act authorised and the purchase of lands under the powers of this Act the sum of four million one hundred thousand pounds:
- (c) For the execution of works under the general powers of the Board the sum of one million pounds:
- (d) With the sanction of the Local Government Board such further sum or sums as may be required for the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Board may mortgage or charge the water fund and all the revenues of the Board.

68. The Board shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):—

Periods for
and mode of
payment off
of money
borrowed.

As to moneys borrowed for the purpose (a) mentioned in the section of this Act of which the marginal note is "Power to borrow" within five years from the passing of this Act:

As to moneys borrowed for the purposes (b) mentioned in the said section within sixty years from the date or respective dates of borrowing:

As to moneys borrowed for the purpose (c) mentioned in the said section within thirty years from the date or respective dates of borrowing:

As to moneys borrowed with the sanction of the Local Government Board as mentioned in the said section within such period from the date or respective dates of borrowing as that Board may determine:

And such repayment shall be effected in one or other of the following methods as may be determined by the Board (that is to say):—

Either by equal yearly or half-yearly instalments of principal or of principal and interest;

[Ch. cxviii.] *Metropolitan Water Board* [1 & 2 GEO. 5.]
(New Works) Act, 1911.

A.D. 1911.

Or by means of a sinking fund;
 Or partly by such instalments and partly by a sinking fund:

Every such instalment and payment to the sinking fund shall be paid out of the water fund and the first payment by instalments or to the sinking fund shall be made within one year from the time of the borrowing of the money in respect of which such payment is made.

Application
 of provisions
 of Act of
 1902 and
 Metropolitan
 Water Board
 Act 1906.

69. Section 27 (Provisions as to local inquiries) of the Act of 1902 shall apply for the purposes of this Act and the following sections of the Metropolitan Water Board Act 1906 and the schedule to that Act shall extend and apply to and with respect to moneys authorised to be borrowed under the powers of this Act and the repayment thereof as if such sections and schedule had been in terms re-enacted in this Act:—

Marginal Note.	No. of Section.
Formation maintenance and application of sinking fund - -	8
Increase reduction or discontinuance of payments to sinking fund -	9
Surplus of sinking fund - - - - -	10
Power to re-borrow - - - - -	11
Form of mortgage - - - - -	12
Register of mortgages - - - - -	13
Transfer of mortgages - - - - -	14
For protection of lenders - - - - -	15
Board not to regard trusts - - - - -	16
Application of borrowed moneys - - - - -	17
Power to raise money by creation and issue of additional amounts of Metropolitan water stock - - - - -	18
Receiver - - - - -	19
Return to Local Government Board as to repayment of debt -	20

And all references in the said sections or any of them to “the prescribed period” shall be deemed to be references to the periods by this Act respectively prescribed for the repayment of moneys borrowed under the powers thereof.

Expenses of
 execution of
 Act.

70. All expenses incurred by the Board in the execution of the purposes of this Act and not otherwise provided for including the payment of interest on any stock issued or moneys borrowed for those purposes and the redemption of such stock and the repayment of such moneys (but excluding expenses properly chargeable to capital and payable out of borrowed moneys) shall be paid out of the water fund.

PART VI.

A.D. 1911.

MISCELLANEOUS PROVISIONS.

71. Subject to the provisions of the Thames Conservancy Act 1911 and of any Act hereafter to be passed amending the same the Board may by means of the waterworks by this Act authorised or any of them collect divert and impound such quantities as they may from time to time require of the waters of the River Thames and may utilise the water so collected diverted and impounded for all or any of the purposes of their undertaking.

Power to abstract water of River Thames.

72. The outer slopes of the external banks of the reservoirs by this Act authorised and of the existing Staines reservoirs of the Board shall as soon as reasonably practicable be planted by the Board with shrubs and trees in such numbers and position and of such character as may be necessary and practicable for reasonably preserving the local amenities and the Board shall if and when necessary maintain and renew such shrubs and trees.

Banks of certain reservoirs to be planted.

73.—(1) For the purpose of constructing maintaining repairing cleansing or examining any of the works authorised by the sections of this Act of which the marginal notes are respectively “Power to make waterworks” and “Power to divert streams” or for the purpose of disposing of any water flowing into any excavation made by the Board during the construction and for the purposes of any of the works authorised by this Act the Board may cause the water in any such work to be temporarily discharged into any available river stream ditch or watercourse or into the Grand Junction Canal (Paddington branch) or the dock in the parish of Northolt on that canal belonging or reputed to belong to A. J. Frazer and Thomas Clayton (Paddington) Limited.

Temporary discharge of water into streams.

(2) In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

74. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions

Application of Arbitration Act 1889.

A.D. 1911. or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889,

Amending
section 17 of
Act of 1902.

75. Section 17 (Issue of water stock) of the Act of 1902 shall as from the passing of this Act be read and have effect as if the words "not exceeding three pounds" had been omitted therefrom.

Crown
rights.

76. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of Act.

77. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board.

The SCHEDULE referred to in the foregoing Act.

A.D. 1911. •

DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY ARE
REQUIRED TO BE TAKEN BY THE BOARD.

Work.	Parish.	Nos. on deposited Plans.
Reservoirs Nos. 6 and 7 and Conduits Nos. 17 18 19 20 21 and 22.	Laleham - -	34.
	Sunbury - -	8 10.
Cut No. 5 - - - -	Laleham - -	34.
	Harmondsworth - -	24 25 30 31.
	Harlington - -	15 19.
	Hayes - -	2 3 4.
Aqueduct No. 1 - - -	Greenford - -	11 13 44 45 46 47 48 49.
	Perivale - -	1.
	Wembley - -	15 16 17 18 19 21 24 25 28 29 34 35 36 42 43 44 47 79.
Aqueduct No. 2 - - -	Northolt - -	3 4 5 6 7 8 9 10 11 12 13.
Reservoir No. 9 Aqueducts Nos. 4 and 5 and Road No. 5.	Greenford - -	44 45 46.
Aqueduct No. 6 - - -	Greenford - -	51.
Aqueduct No. 7 - - -	Wembley - -	79.
Reservoir No. 10 - - -	Wembley - -	79.
Road No. 6 - - - -	Wembley - -	79.
	Perivale - -	4 5 6.
Aqueduct No. 8 - - -	Wembley - -	80 81 82 83 90 92.
	Twyford Abbey - -	3 4 7 8 9 13 21 22.
	Willesden - -	3 5.
	Acton - -	8 9.
Aqueduct No. 10 - - -	Wembley - -	109 110.
Aqueduct No. 12 - - -	Acton - -	9.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

